

No secret affair: on the draft Digital Personal Data Protection Rules, 2025

The **deliberations** on the draft Digital Personal Data Protection Rules, 2025 **must** be transparent

The draft Digital Personal Data Protection Rules, 2025, is a long **overdue advance** in the direction of **enforcing** the fundamental right to informational privacy for Indians, **affirmed** by the Supreme Court of India in the **landmark** case, Justice K.S. Puttaswamy vs. Union of India (2017). The Digital Personal Data Protection **Act**, which these draft rules **seek** to enforce, **was** passed in Parliament over a year ago. This seven-year wait has most **likely** not been without costs for the privacy of the data of Indians, as it **coincided with** a period that saw a **rapid** growth in **digitisation**. The proposed rules offer direction on how online services will be required to: **communicate** the purposes of their data collection to users; **safeguard** children's data online; **establish** the Data Protection Board of India (DPBI); **set the standards** for government agencies to follow to be **exempt** from the Act's provisions, and **spell out** the procedures to be observed if personal data is **breached** by a data **fiduciary**. The **concerns** regarding the proposed DPBI's institutional design **have** not been resolved by these proposed Rules, and it may not be realistic to expect such an **outcome** from **subordinate legislation**.

It is **regrettable** that the government continues to **cloak** the rule-making process of a critical policy such as this in **secrecy**. Since the Justice B.N. Srikrishna committee was **convened** to draft the first Bill for data protection, the government has consistently declined to place recommendations from **stakeholders** in the public **domain**, and has **foreclosed** such disclosure for these draft rules as well. For legislation where the **stakes** are high for individual users as well as for large technology firms, an open **deliberative** process is essential. It can only be **facilitated** when industry associations and the general public can find equal **footing** by being equal participants with **transparency** into each other's viewpoints during the consultation process. In the short and medium term, it is **essential** for the government to **proceed** with these principles in mind, while never **departing** from the key aims of any data protection law: minimising data collection, promoting disclosures, **penalising neglect** in protecting user data, and **discouraging surveillance** practices, both by the private sector and the government. This process must also **play out** in a timely **fashion**, as Indians have been waiting far too long to finally obtain the rights that were affirmed for them in 2017. Else, people's **confidence** in the government's seriousness about protecting their data from government agencies as well as private enterprises **would** be **shaken**.

[Practice Exercise]

- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'

Vocabulary

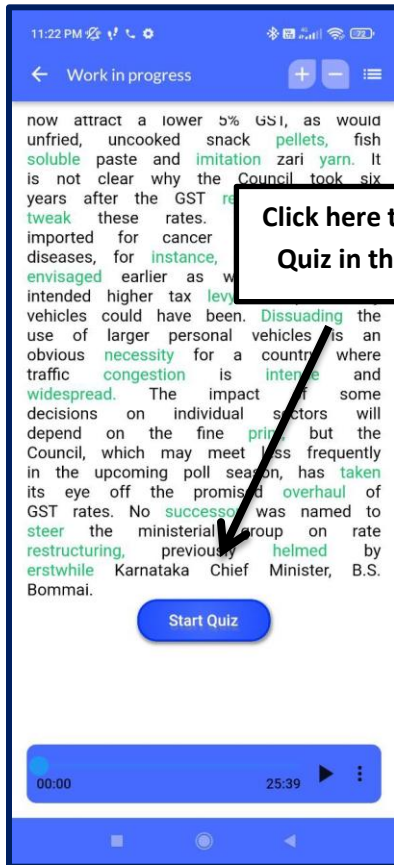
1. **Deliberation** (noun) – Discussion, debate, consideration, thought, reflection विचार-विमर्श
2. **Transparent** (adjective) – Clear, open, visible, straightforward, candid पारदर्शी
3. **Overdue** (adjective) – Late, delayed, behind schedule, belated, pending विलंबित
4. **Advance** (noun) – Progress, improvement, development, step forward, breakthrough प्रगति
5. **Enforce** (verb) – Implement, impose, execute, apply, uphold लागू करना
6. **Affirm** (verb) – Confirm, assert, state, declare, endorse पुष्टि करना
7. **Landmark** (adjective) – Historic, significant, notable, major, groundbreaking ऐतिहासिक
8. **Seek** (verb) – Pursue, aim for, strive for, look for, request प्रयास करना
9. **Likely** (adjective) – Probable, expected, possible, plausible, credible संभावित
10. **Coincide** (with) (verb) – Occur simultaneously, concur, overlap, align, match मेल खाना
11. **Rapid** (adjective) – Quick, fast, speedy, swift, prompt तेज़
12. **Digitisation** (noun) – Digitalisation, computerisation, automation, conversion to digital format डिजिटलीकरण
13. **Communicate** (verb) – Convey, share, inform, express, articulate सूचित करना
14. **Safeguard** (verb) – Protect, secure, shield, preserve, defend सुरक्षा करना
15. **Establish** (verb) – Set up, found, create, form, build स्थापित करना
16. **Set the standard** (phrase) – Establish criteria, define norms, create benchmarks, set an example मानक स्थापित करना
17. **Exempt** (noun) – Exclusion, exception, immunity, release, dispensation छूट
18. **Spell out** (phrasal verb) – Explain clearly, elaborate, define, clarify, specify स्पष्ट करना
19. **Breach** (verb) – Violate, break, infringe, rupture, disobey उल्लंघन करना
20. **Fiduciary** (noun) – Trustee, guardian, custodian, caretaker, steward न्यासी
21. **Outcome** (noun) – Result, consequence, effect, product, conclusion परिणाम
22. **Subordinate** (adjective) – Secondary, auxiliary, dependent, lesser, inferior अधीनस्थ
23. **Legislation** (noun) – Lawmaking, statute, enactment, ordinance, regulation कानून
24. **Regrettable** (adjective) – Unfortunate, lamentable, disappointing, distressing, undesirable खेदजनक

25. **Cloak** (verb) – Conceal, hide, mask, cover, obscure छुपाना
26. **Secrecy** (noun) – Confidentiality, privacy, covertness, concealment, discretion गोपनीयता
27. **Convene** (verb) – Assemble, summon, gather, meet, call together बुलाना
28. **Stakeholder** (noun) – Participant, shareholder, partner, interested party, contributor हितधारक
29. **Domain** (noun) – Field, area, sphere, realm, territory क्षेत्र
30. **Foreclose** (verb) – Preclude, prevent, shut out, bar, exclude समाप्त करना
31. **Stake** (noun) – Interest, share, involvement, concern, claim हिस्सेदारी
32. **Deliberative** (adjective) – Reflective, thoughtful, consultative, intentional, reasoned विचारशील
33. **Facilitate** (verb) – Ease, enable, assist, simplify, aid सुगम बनाना
34. **Footing** (noun) – Basis, foundation, ground, position, support आधार
35. **Transparency** (noun) – Clarity, openness, candor, accountability, visibility पारदर्शिता
36. **Essential** (adjective) – Necessary, vital, crucial, indispensable, fundamental आवश्यक
37. **Proceed** (with) (verb) – Continue, advance, move forward, carry on, progress आगे बढ़ना
38. **Depart** (verb) – Deviate, stray, diverge, leave, abandon भटकना
39. **Penalise** (verb) – Punish, discipline, sanction, fine, impose penalty दंडित करना
40. **Neglect** (noun) – Disregard, inattention, negligence, oversight, carelessness उपेक्षा
41. **Discourage** (verb) – Dissuade, deter, inhibit, demotivate, prevent हतोत्साहित करना
42. **Surveillance** (noun) – Monitoring, observation, watch, oversight, scrutiny निगरानी
43. **Play out** (phrasal verb) – Unfold, develop, progress, occur, happen सामने आना
44. **Fashion** (noun) – Manner, way, style, method, mode तरीका
45. **Shake** (verb) – Disturb, unsettle, weaken, agitate, dislodge हिला देना

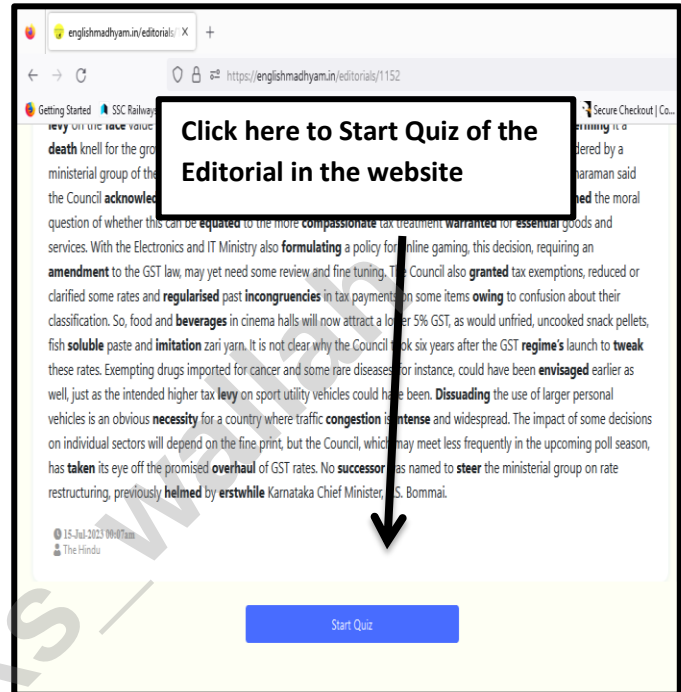
Summary of the Editorial

1. **Long-Overdue Rules:** The draft Digital Personal Data Protection Rules, 2025, aim to enforce the Supreme Court's affirmation of the right to informational privacy in Justice K.S. Puttaswamy vs. Union of India (2017).
2. **Delayed Progress:** The Digital Personal Data Protection Act was passed over a year ago, but the seven-year gap since the Supreme Court ruling has likely impacted data privacy negatively amidst rapid digitization.
3. **Key Provisions:** The draft rules address areas such as purpose-driven data collection, safeguarding children's data, establishing the Data Protection Board of India (DPBI), and managing breaches by data fiduciaries.
4. **Government Exemptions:** Standards for exempting government agencies from the Act's provisions are also outlined in the draft.
5. **DPBI Concerns:** Concerns about the DPBI's institutional design remain unresolved and may not be addressed through subordinate legislation.
6. **Opaque Process:** The government has kept the rule-making process secret, failing to make stakeholder recommendations or feedback publicly accessible.
7. **Missed Opportunities for Transparency:** Open consultation and transparency would have allowed public and industry stakeholders to contribute meaningfully and understand diverse viewpoints.
8. **High Stakes:** The stakes of these rules are significant for individuals' privacy and the operational practices of large technology firms.
9. **Need for Equal Participation:** An open, deliberative process should ensure equal footing for industry associations, the public, and other stakeholders.
10. **Key Aims of Data Protection:** The draft rules should focus on minimizing data collection, promoting disclosures, penalizing neglect in data protection, and discouraging surveillance.
11. **Timely Implementation Needed:** Timely action is crucial to enforce rights affirmed in 2017 and avoid further delays.
12. **Restoring Confidence:** The lack of transparency could undermine public trust in the government's commitment to safeguarding data privacy.
13. **Balance Required:** The rules must strike a balance between protecting individual rights and enabling innovation for businesses.
14. **Importance of Open Deliberation:** Open deliberation is essential to ensure robust policies and widespread public trust.
15. **Risk of Losing Public Trust:** Continued secrecy risks eroding confidence in the government's seriousness about protecting data from misuse by both the private sector and government agencies.

Practice Exercise: SSC Pattern Based



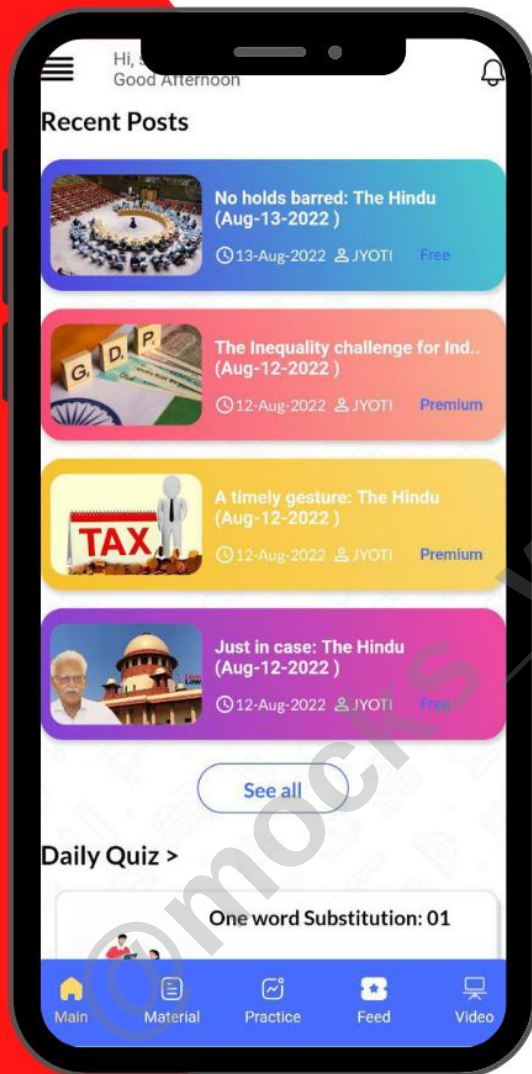
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